

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

August 24, 2009

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Dr. Rinne, Mr. Spiker and Mr. Valdez. Absent: Mr. Pierson. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney.

RECOGNITION OF POLICE CHIEF ROBERT D. FECHT ON HIS RETIREMENT. Carol Intlekofer, City Clerk, read a proclamation into the record honoring Chief Fecht for his 19 years of service with the Cheyenne Police Department and proclaiming Aug. 31, 2009 Robert D. Fecht Day. Mayor Kaysen expressed appreciation to Chief Fecht and presented him with a plaque and the proclamation. Several members of the governing body expressed appreciation to Chief Fecht for his years of service and support. Chief Fecht thanked the Mayor, Council members, his officers, staff and co-workers for the privilege of working for the City.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.). Mayor Kaysen advised Agenda Item #19 was being withdrawn from the City Council meeting agenda to allow for additional review and research to be conducted. Upon request by Ms. Case, and pursuant to support received by Mr. Collins and Mr. Brown, agenda item #15 was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body present.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON AUGUST 10, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON AUGUST 17, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM SPECIAL MEETING OF THE GOVERNING BODY ON AUGUST 17, 2009. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Brown. Upon inquiry regarding a voucher payable to Robert D. Clary PE, PC (\$450.00), Mayor Kaysen clarified the expenditure was for services involving a proposed City pocket park site located downtown on West Lincolnway to ensure adjacent building retaining walls were safe prior for future public access. It was noted that long-term plans for the site would, hopefully, involve commercial use purposes.

Motion carried. Voting “yes” – all members of the governing body present.

Mayor Kaysen opened a public hearing to receive comments and input on the submission of an application to the Wyoming Business Council, under Business Ready Communities: Community Enhancement Program, for a grant to develop Saddle Ridge Park. Todd Feezer, Assistant Director of Parks and Recreation, provided information on the proposed park; explained proposed grant request in the amount of \$285,820.00 and the City’s proposed grant match mechanism, and noted funding has also been sought and approved in the amount of \$105,125.00 through the recreation mill levy, administered through the school district, to assist with the project, which will serve as an urban quality amenity located within Saddle Ridge subdivision in east Cheyenne. He stated the developer has donated 14 acres for the project of which seven acres are proposed for park development at this time as part of the grant application. Mr. Feezer advised the park will serve residents and workers in the workforce housing and business area in the vicinity of the Cheyenne LEADS business park, and will also be near the Greenway path system and new Saddle Ridge school. He indicated the developer is also donating assistance with site grading and utility stubs, and described uses of grant funds, if approved. Appreciation was expressed to staff for their creativity in seeking this type of Business Council grant for park development. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

Mayor Kaysen opened a public hearing to receive comments and input on the submission of an application to the Wyoming Business Council, under the Business Ready Communities: Business Readiness Project, for a grant to develop a manufacturing building in the Cheyenne Business Parkway. Scott Sutherland, Vice President, Cheyenne LEADS, advised LEADS is seeking the City’s assistance in applying for grant funding that, if received, will provide a manufacturing speculation building that LEADS can promote to manufacturing companies interested in a Cheyenne location. He explained a community need for this type of shell building exists; that it will not be a building for warehouse purposes, and that it will provide for potential economic development. He stated the grant, if approved, requires a match that would be provided by LEADS through property valuation. Upon inquiry, Mr. Sutherland indicated the facility would be approximately 40,000 sq. ft. in size and provided information on the estimated number of employment opportunities that may be available based upon past inquiries. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public meeting.

“AN ORDINANCE SUBMITTING TO THE QUALIFIED PROPERTY OWNERS OF REAL PROPERTY WITHIN THE BOUNDARIES OF THE CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT OF CHEYENNE, WYOMING, EXCLUDING REAL PROPERTY USED EXCLUSIVELY FOR RESIDENTIAL PURPOSES, AT A SPECIAL ELECTION ON TUESDAY, OCTOBER 20, 2009, THE FOLLOWING QUESTION: ‘SHALL A SPECIAL ASSESSMENT OF TEN (10) MILLS BE LEVIED UPON THE ASSESSED VALUE OF REAL PROPERTY WITHIN THE BOUNDARIES OF THE CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT, EXCLUDING REAL PROPERTY USED EXCLUSIVELY FOR RESIDENTIAL PURPOSES, FOR A PERIOD OF FOUR (4) YEARS PURSUANT TO THE PROVISIONS OF WYO. STAT. § 15-9-217(b) AND (c) FOR THE PURPOSES OF (1) ADMINISTRATIVE COSTS; (2) LANDSCAPING OR MAINTENANCE OF PUBLIC AREAS; (3) PLANNING OR MANAGEMENT OF DEVELOPMENT OR IMPROVEMENT ACTIVITIES; (4) PROMOTION OF PUBLIC EVENTS; AND (5) ACTIVITIES IN SUPPORT OF BUSINESS RECRUITMENT AND DEVELOPMENT?’” Christian Cherek, DDA Director, advised she was available to answer any questions. Reporting for

Finance Committee, Mr. Valdez moved to approve on second reading, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body present.

“AN ORDINANCE CREATING SECTION 10.24.170, DRIVING WHILE USING CELLULAR TELEPHONE PROHIBITED; EXCEPTIONS, OF CHAPTER 10.24, RULES OF THE ROAD GENERALLY, OF TITLE 10, VEHICLES AND TRAFFIC, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING.” John Fafoutakis commented in support of violations constituting a secondary offense instead of a primary one if the ordinance were approved, and cited concerns with ordinance enforcement, other distractive driving scenarios, and governing body infringement of individual rights and liberties. Major Dorr spoke in favor of laws that assist with keeping people safe. Pacomio Sandoval spoke in favor of drivers utilizing hands free devices when using cell phones while driving, and commented on passage of laws due to individuals’ irresponsibility and enforcement concerns. Reporting for Public Services Committee, Mr. Brown moved to approve on second reading, seconded by Mr. Collins. Discussion followed on use of hands free devices, safety concerns with use of cell phones and texting while driving, enforcement issues and concerns, proposed costs related to community signage if signs were posted to provide notification to the public of ordinance restrictions, and public education and awareness. Upon inquiry, Jim Elias, Public Works Director, advised if the ordinance is approved and signage was to be installed at entryways into the City, approximately 20 signs would be posted at an estimated cost of \$120/sign. It was advised public awareness and education would be provided through media releases, public service announcements and City website postings. Upon inquiry regarding enforcement, Captain Jeff Schulz, Police Dept., advised the ordinance would be enforced on a priority basis as with other ordinances, and provided information on offenses involving careless driving, explaining that citations written for careless driving involves the manner of operation of a vehicle vs. what a driver may be doing within the vehicle. Regarding local statistics, Captain Schulz provided information pursuant to 2008 accident reports involving drivers who admitted to using cell phones. Discussion continued on safety issues; driving practices; hand held vs. hands free cell phone usage by drivers; governing body authority to regulate driving, and protection of the public and other drivers. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Valdez voting “no”.

“AN ORDINANCE REPEALING SECTION 9.08.030, GAMBLING-PROHIBITED-EXCEPTIONS, AND SECTION 9.08.040, VIOLATIONS BY OWNER OR OCCUPANT OF PREMISES WHERE GAMBLING CONDUCTED, OF TITLE 9, PUBLIC PEACE AND WELFARE, CHAPTER 9.08, OFFENSES AGAINST PUBLIC PEACE AND DECENCY, OF THE CHEYENNE CITY CODE.” Mr. Brown moved to approve on second reading, seconded by Mr. Collins. Upon inquiry, Dan White, City Attorney, provided information on a recent amendment to state statute which would allow certain types of gambling/gaming activities by patrons of businesses under certain circumstances, and in which the business does not receive any direct profit from the activity and where no person is participating directly or indirectly in professional gambling. Captain Jeff Schulz, Police Dept., provided information on past acceptable practices and changes due to an Attorney General’s opinion that resulted in state law changes, and discussed enforcement concerns with the current city ordinance as written. Discussion followed and included: Repeal of the ordinance not reflecting that the City is legalizing gambling activities; state law definition of gambling; what constitutes a bona fide social relationship; whether advertising casino or poker events by bars was in violation of state law; interpretation and enforcement of state law if the ordinance is approved, and different types of gambling/gaming activities and scenarios. Upon inquiry, Mr. White expressed his understanding, pursuant to law enforcement practices, that, for instance, a bar can not advertise a gambling event, such

as a poker night, but could allow patrons to participate in the activity if it meets a bona fide social relationship as referenced in state statute, and advised some activities could require further review due to “gray areas” of interpretation, especially those involving a business and the issue of receiving direct vs. indirect profits. Upon inquiry, Captain Schulz clarified conducting “pools” (example: involving professional sporting events) at bars is a gray area as to whether it constitutes a social relationship. Discussion continued on different types of gambling activities as affiliated with a social relationship, such as raffles, pools, and casino nights raising money for charities; conducting gambling as a business; advertising for charitable events, and legal vs. illegal practices involving businesses or entities where the business or entity holding or sponsoring the gaming activity does or does not take or receive a portion of the gaming proceeds. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Spiker voting “no”.

[CA] “A RESOLUTION DESIGNATING THE DIRECTOR OF PURCHASING AS AGENT FOR THE CITY OF CHEYENNE FOR THE PURPOSE OF ORGANIZING AND HOLDING A SURPLUS MUNICIPAL PROPERTY AUCTION AT THE TIME CONVENIENT FOR THE CITY.” Motion (per Consent Agenda) carried. (#5157)

“A RESOLUTION SUPPORTING THE ALLOCATION OF FISCAL YEAR 2008-2009 WARD I CONTINGENCY FUNDS TO THE CHEYENNE HEALTH AND WELLNESS CENTER TO PROVIDE HEALTH CARE SERVICES TO THE UNDERINSURED.” Mr. Valdez moved to adopt in the amount of \$1,000.00, seconded by Ms. Ash. It was advised the item was requested to be removed from the Consent Agenda to provide comment that the resolution provides disclosure to the public on the use of Ward I contingency funds. It was further noted the funding will be utilized to purchase equipment to assist with health care needs involving school age children. Motion carried. Voting “yes” – all members of the governing body present. (#5158)

“A RESOLUTION AUTHORIZING THE SUBMISSION OF A BUSINESS READY COMMUNITY: COMMUNITY ENHANCEMENT GRANT APPLICATION TO THE WYOMING BUSINESS COUNCIL ON BEHALF OF THE GOVERNING BODY OF THE CITY OF CHEYENNE FOR DEVELOPMENT OF SADDLE RIDGE PARK.” Mr. Valdez moved to adopt, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body present. (#5159)

“A RESOLUTION AUTHORIZING THE CITY OF CHEYENNE TO ENTER INTO A CONTRACT WITH THE CHEYENNE-LARAMIE COUNTY CORPORATION FOR ECONOMIC DEVELOPMENT (“CHEYENNE LEADS”) TO DESIGNATE CHEYENNE LEADS AS THE AGENT OF THE CITY OF CHEYENNE FOR THE PURPOSES OF SUBMITTING AN APPLICATION TO THE WYOMING BUSINESS COUNCIL FOR A GRANT UNDER THE BUSINESS READY COMMUNITY GRANT AND LOAN PROGRAM IN THE AMOUNT OF ONE MILLION, FIVE HUNDRED THOUSAND DOLLARS (\$1,500,000.00) TO FUND THE CONSTRUCTION OF A MANUFACTURING FACILITY IN THE CHEYENNE BUSINESS PARKWAY” -- referred to Finance Committee (sponsor - Mr. Spiker). Mr. Valdez advised the item was discussed under other items for the agenda at Finance Committee and provisions of Title 2 of City Code had been met. Mr. Valdez moved to adopt, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body present. (#5160 Res/#5434 Contract)

“A RESOLUTION AUTHORIZING THE CITY OF CHEYENNE TO SUBMIT TO THE WYOMING BUSINESS COUNCIL AN APPLICATION FOR A GRANT UNDER THE BUSINESS

READY COMMUNITY GRANT AND LOAN PROGRAM IN THE AMOUNT OF ONE MILLION, FIVE HUNDRED THOUSAND DOLLARS (\$1,500,000.00) TO BE USED TO PAY A PORTION OF THE COST OF CONSTRUCTING A MANUFACTURING FACILITY FOR PROSPECTIVE COMPANIES IN THE CHEYENNE BUSINESS PARKWAY” -- referred to Finance Committee (sponsor - Mr. Spiker). Mr. Valdez advised the item was discussed under other items for the agenda business at Finance Committee and provisions of Title 2 of City Code had been met. Mr. Valdez moved to adopt, seconded by Ms. Broyles. Upon inquiry, Scott Sutherland, Vice President, Cheyenne LEADS, advised, depending on the type of company and its operations, the average employment salary affiliated with a manufacturing facility could range from \$32,000 - \$45,000 per year. Motion carried. Voting “yes” – all members of the governing body present. (#5161)

[CA] “A RESOLUTION APPROVING A USER WATER AND SEWER SERVICES AGREEMENT WITH LARAMIE COUNTY FOR THE PROPERTY KNOWN AS THE ARCHER COMPLEX” - sponsor - Mr. Collins). [City Clerk note: Refer to Consent Agenda portion of meeting minutes (re: item withdrawn from meeting agenda.)]

LEASES/CONTRACTS/LEGAL:

[CA] Contract between the City of Cheyenne Police Department, Victim Witness Program, and the State of Wyoming, Division of Victim Services, for services to victims of crime. Motion (per Consent Agenda) carried (funding to City \$67,544.00). (#5430)

[CA] Acceptance of FAA Grant #3-56-0005-44 in the amount of \$300,000 for Airport Planning and Design Projects (Master Plan Update, Terminal Design and Environmental Assessments). Motion (per Consent Agenda) carried (\$300,000.00). (#5431)

[CA] Agreement between the City of Cheyenne and A-1 Organics for Resources and Services at the Public Composting Facility, Cheyenne, WY. Motion (per Consent Agenda) carried (amount not to exceed \$189,312.80). (#5432)

[CA] Agreement between the City of Cheyenne and Southern Corrections Systems of Wyoming, LLC, for the Placement of Misdemeanor Offenders by the Municipal Court. Motion (per Consent Agenda) carried (\$53.18/day/offender). (#5433)

[CA] Agreements between the City of Cheyenne and the following Human Services Agencies: Cheyenne Housing Authority, and Peak Wellness Center, Inc., Alcohol Receiving Center -- referred to Finance Committee.

[CA] Agreements between the City of Cheyenne and the following Human Services Agencies: American Red Cross; Boys and Girls Club of Cheyenne, Wyoming, Inc.; CASA of Laramie County; Cheyenne Health and Wellness Center (Dental Access and Unified Human Service Eligibility); CIHN; CLIMB Wyoming; COMEA, Inc. (Basic Emergency Shelter Services and Transitional Living); Consumer Credit Counseling Services; Laramie County Community Partnership (Connections Corner and Cheyenne Area Centralized Pharmacy); Meals on Wheels of Cheyenne, Inc.; NEEDS, Inc.; Peak Wellness Center, Inc.; Retired and Senior Volunteer Program; Safe Harbor, A Children’s Justice Center; Safehouse/Sexual Assault Services, Inc.; Southeast Wyoming Foster Grandparent Program (Helping Community and Helping Youth); Special Friends of Cheyenne; Stride Learning Center, and Wyoming Senior Citizens, Inc. (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Cooperative Agreement between the City of Cheyenne, Wyoming Department of Transportation, and Laramie County for Speer/High Plains Road Interchange Enhancements (2007-2010 1% Sales Tax, State Land & Investment Board, American Recovery & Reinvestment Act) -- referred to Finance Committee.

[CA] Juvenile Housing Agreement between the City of Cheyenne and Cornerstone Programs Corporation d/b/a Jeffrey C. Wardle Academy -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Contract Modification No. 2 to Contract No. 5206 between the City of Cheyenne and David Ohde & Associates for additional work for the West Lincolnway Streetscaping Project (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Amendment No. 1 to Contract No. 5306 between the City of Cheyenne, Metropolitan Planning Organization, and Western R&D Ltd. for additional services for drainage basin study for the West Allison Road Corridor Plan -- referred to Finance Committee.

CONSIDERATION OF BIDS:

[CA] Authorization of sole source quote from The Southwell Company to purchase Heritage Markers for \$66,500.00 for the City's Heritage Education Project. (Preserve America Grant, Wyoming Cultural Trust Fund Grant, Ward I Contingency funds). Motion (per Consent Agenda) carried (amount not to exceed \$66,500.00).

APPOINTMENTS:

Appointment of Jason Stephen to the Contractor Licensing Board. Mr. Collins moved to approve, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Appointment of John Sundahl, Richard O'Gara, Matt Pope and Bret Jones to the Cheyenne Downtown Development Authority. Mr. Spiker moved to approve, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

ANNOUNCEMENTS/REPORTS/MOTIONS:

[CA] Community Facility Fees Report for fiscal Year ending June 30, 2009. Motion (per Consent Agenda) carried.

Announcement was made that due to the Labor Day holiday on Monday, September 7, 2009, the following meetings have been rescheduled for Tuesday, September 8, 2009: Finance Committee at 11:00 a.m., Room 122; regular Vouchers meeting of the Governing Body at Noon, City Council Chambers, and Public Services Committee at 12:15 p.m., Room 122, Municipal Building, 2101 O'Neil Ave., Cheyenne, WY.

Announcement was made of a Calcutta to be held Friday, September 18, 2009 beginning at 5:30 p.m. at the Old West Museum, 4610 Carey Avenue, in conjunction with Laramie County Republican Party Fall fundraiser (Proceeds to benefit Laramie County Republican Party).

Announcement was made of the Appointment of Holly A. Hansen, and Ronnald J. Jeffrey to the Laramie County Community Juvenile Services Joint Powers Board, to be confirmed September 14, 2009.

OTHER CITY BUSINESS:

It was announced the Habitat for Humanity Women Build Project located on Messenger Court will be celebrating the “turning over” of keys to houses for two families on Sat. August 29th at 1:00 p.m., and persons were invited to attend.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:21 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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